Sukhbir Agro Energy Limited vs Uppcl & Ors on 12 January, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal 89 of 2010

Dated :12thJanuary, 2011

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

Sukhbir Agro Energy Limited ... Appellant(s
Versus
UPPCL & Ors. ....Respondent(s)
Counsel for the Appellant(s): Mr. Abhishek Puri, Mr. K. Swadeep

Counsel for the Respondent(s): Mr. Kunal Verma for UPERC

ORDER

Learned counsel for the Appellant requests that in light of the judgment of Hon'ble Supreme Court in PTC vs. CERC reported as 2010 ELR SC 269 holding that the regulations cannot be challenged before this Tribunal he may be permitted to withdraw this Appeal as he intends to approach the appropriate forum for doing the same.

We have heard the learned counsel for the Commission and other Respondents.

In view of the statement made by the learned counsel for the Appellant the appeal is dismissed as withdrawn.

(V.J. Talwar) (Justice M. KarpagaVinayagam)
Technical Member Chairperson

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